



CHAPTER lxi.

An Act to confer further powers upon the Pontypridd and Rhondda Joint Water Board and for other purposes.

A.D. 1925

[31st July 1925.]

WHEREAS the Pontypridd and Rhondda Joint Water Board (in this Act referred to as "the Board") were incorporated by the Pontypridd and Rhondda Water Act 1910 (in this Act referred to as "the Act of 1910") for the purpose of maintaining certain waterworks (which include amongst others impounding reservoirs at Mardy) and of constructing certain other waterworks (one of which was an impounding reservoir in this Act referred to as "the Llia reservoir") and of supplying water within a portion of the urban district of Rhondda the urban district of Pontypridd the parish of Eglwysilan in the urban district of Caerphilly and the rural district of Llantrisant and Llantwit Fardre:

And whereas by virtue of section 59 of the Act of 1910 (a) the council of the rural district of Llantrisant and Llantwit Fardre (in this Act referred to as "the Llantrisant Council" and "the Llantrisant district" respectively) have acquired the portion of the undertaking of the Board within the Llantrisant district and the Board are under obligation to deliver to the Llantrisant Council so far as they are able so to do by means of their existing works and unless prevented by frost unusual drought or other unavoidable cause or accident and the Llantrisant Council are under obligation to take

A.D. 1925. — from the Board for the supply of the Llantrisant district water of a quantity based upon the quantity which the inhabitants of a certain part of the Llantrisant district were receiving at the date when the Llantrisant Council acquired the portion of the undertaking of the Board aforesaid and (b) other provision (which has since been repealed) was made for the supply of water to be delivered by the Board to the Llantrisant Council and to be taken by the Llantrisant Council from the Board from and after the time when the Board were in a position to supply water from the Llia reservoir :

And whereas by the Merthyr Tydfil Corporation Water Act 1911 the mayor aldermen and burgesses of the county borough of Merthyr Tydfil (in this Act referred to as "the Merthyr Corporation") were empowered to construct a new impounding reservoir (in this Act referred to as "the Taf Fechan reservoir") and by an agreement dated the third day of July one thousand nine hundred and twelve and made between the Merthyr Corporation and the Board the Merthyr Corporation bound themselves from and after the date upon which the Taf Fechan reservoir was completed and filled with water to deliver to the Board in perpetuity from the Taf Fechan reservoir and the Board bound themselves to take from the corporation in perpetuity or pay for as taken a minimum quantity of water of one million gallons per day at the price of three pence per thousand gallons :

And whereas by section 4 of the Pontypridd and Rhondda Water Act 1913 (in this Act referred to as "the Act of 1913") the said agreement was confirmed and made binding on the Merthyr Corporation and the Board and by section 24 it was provided that as from the date upon which the Board should first receive a supply of water from the Merthyr Corporation in pursuance of the said agreement the Board should deliver to the Llantrisant Council (unless prevented as aforesaid) and the Llantrisant Council should take from the Board or pay for as taken a minimum quantity of water of 334,000 gallons per day and that in addition thereto the Board should deliver to the Llantrisant Council and the Llantrisant Council should take such further quantity of water not exceeding 666,000 gallons per day as the Llantrisant Council might from time to time require :

And whereas by section 25 of the Act of 1913 A.D. 1925,
provision was made for enabling the council of the urban
district of Caerphilly (in this Act referred to as "the
Caerphilly Council" and "the Caerphilly district"
respectively) to acquire the portion of the undertaking
of the Board within the Caerphilly district (except any
pipes and apparatus necessary for supplying with water
places not within that district) and providing that
after such acquisition the Board should deliver to the
Caerphilly Council and the Caerphilly Council should take
from the Board until the date upon which the Board
should have first received a supply of water from the
Merthyr Corporation in pursuance of the said agreement
and so far as the Board should be able so to do from
their then existing works and unless prevented by frost
unusual drought or other unavoidable cause or accident
a supply of water of a quantity based upon the quantity
of water which the inhabitants of the Taffs Well Ward
in the Caerphilly district were taking from the Board at
the date of such acquisition and after the date upon
which the Board should first have received a supply of
water from the Merthyr Corporation as aforesaid and
unless prevented as aforesaid such quantity of water
(not being less than 50,000 nor more than 150,000 gallons
in any day) as the Caerphilly Council might from day
to day require for distribution in the Taffs Well Ward:

And whereas the Merthyr Corporation were unable
to complete the construction of the Taf Fechan reservoir
and to fulfil their obligations to the Board and to certain
local authorities to whom they had also agreed to supply
water and as a consequence thereof it became necessary
in the sessions of 1920 and 1921 for Parliament to deal
anew with the rights and obligations of the bodies herein-
before referred to with respect to the supply of water and
accordingly by the Taf Fechan Water Supply Act 1921
(in this Act referred to as "the Taf Fechan Act of 1921")
the Taf Fechan Water Supply Board (in this Act referred
to as "the Taf Fechan Board") were incorporated for
the purpose of acquiring completing managing and
carrying on the Taf Fechan water supply undertaking
of the corporation (which as defined in that Act includes
the Taf Fechan reservoir) and of supplying water in
bulk therefrom upon new terms and conditions different
from those which had previously been enacted:

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And whereas the Merthyr Corporation the Board and the Llantrisant Council are and the Caerphilly Council are not constituent members of the Taf Fechan Board :

And whereas by section 19 of the Taf Fechan Act of 1921 section 4 of the Act of 1913 and the said agreement between the Merthyr Corporation and the Board confirmed thereby were repealed and cancelled by section 21 of that Act the obligations of the Board to supply water in bulk to the Llantrisant Council and of the Llantrisant Council to take water in bulk from the Board under section 59 of the Act of 1910 and section 24 of the Act of 1913 after the date upon which the Taf Fechan reservoir is completed and filled with water were repealed and by section 22 of the Taf Fechan Act of 1921 it was and is provided that as from the last-mentioned date :—

- (1) The Taf Fechan Board shall supply to the Board and the Board shall take from the Taf Fechan Board or pay for as if taken a minimum quantity of water of 300,000 gallons per day for the following purposes :—

	Gallons
For the purpose of enabling them to fulfil their statutory obligations to the Caerphilly Council	50,000
For the general purposes of the Board - - - - -	250,000

- (2) The Taf Fechan Board shall also supply to the Board such additional quantity of water up to but not exceeding 350,000 gallons per day as the Board may from time to time require for the following purposes :—

	Gallons
For the purpose of enabling them to fulfil their statutory obligations to the Caerphilly Council	100,000
For the general purposes of the Board - - - - -	250,000

- (3) The Taf Fechan Board shall also supply to the Llantrisant Council and the Llantrisant Council shall take from the Taf Fechan Board or pay for as if taken a minimum quantity of water of 250,000 gallons per day; and

- (4) The Taf Fechan Board shall also supply to the Llantrisant Council such additional quantity of water up to but not exceeding 750,000 gallons as the Llantrisant Council may from time to time require : A.D. 1925.
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And whereas water will not by gravitation from the Taf Fechan reservoir reach a considerable portion of the Llantrisant district and during the progress of the Bill for the Taf Fechan Act of 1921 it was agreed that after the date upon which the Taf Fechan reservoir shall be completed and filled with water the Board shall deliver from their Mardy Works to the Llantrisant Council a supply of water of such quantity not being less than 175,000 gallons and not being more than 700,000 gallons in any one day as the Llantrisant Council may from time to time require and that the Taf Fechan Board shall deliver to the Board on account of the water to be supplied to the Llantrisant Council under the Taf Fechan Act of 1921 such quantity of water (if any) (but not exceeding the quantity which the Board are for the time being required under the Taf Fechan Act of 1921 to deliver from their Mardy works to the Llantrisant Council) as the Board may require in accordance with the provisions set forth in Part III. of the Third Schedule to the Taf Fechan Act of 1921 :

And whereas during the progress of the Bill for the Taf Fechan Act of 1921 it was further agreed between the Board and the Llantrisant Council that the Board should promote a Bill to effect other amendments of section 59 of the Act of 1910 which were rendered necessary by the passing of the Taf Fechan Act of 1921 :

And whereas at the request of the Llantrisant Council it has been agreed that the provisions set forth in Part III. of the Third Schedule to the Taf Fechan Act of 1921 shall be varied as in this Act provided and it is expedient to make further provision by this Act for the provisions of that Part of that schedule as so varied being binding upon the Board and the Llantrisant Council as between themselves :

And whereas in order to enable them the better to fulfil their statutory obligations under the Taf Fechan Act of 1921 the Taf Fechan Board were by the Taf Fechan Water Supply Act 1924 (in this Act referred to as

A.D. 1925. — “ the Taf Fechan Act of 1924 ”) empowered to construct lines of pipes in substitution for some of those by which the Merthyr Corporation would have supplied water to the Board and other authorities pursuant to the agreements hereinbefore referred to and the Board and the Taf Fechan Board have agreed that the point at which the water to be delivered to them by the Taf Fechan Board in pursuance of the Taf Fechan Act of 1921 and which is referred to in Part III. of the Third Schedule to that Act as “ the Pontypridd point ” shall be a point situate upon the line of pipes Work No. 9 by the Taf Fechan Act of 1924 authorised and it is necessary that “ the Pontypridd point ” be altered as in this Act provided :

And whereas it is expedient that the Board be authorised to construct the works in this Act described :

And whereas it is expedient that the rates and prices to be demanded and paid for water supplied by the Board be altered and increased :

And whereas it is expedient that the other provisions in this Act contained be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an estimate has been prepared by the Board of the cost of constructing the works by this Act authorised including the amount necessary for the purchase of lands in connection therewith and such estimate amounts to the sum of forty-three thousand eight hundred pounds :

And whereas the works included in such estimate are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas pursuant to section 96 of the Act of 1910 an absolute majority of the whole number of the Board at a meeting held on the eighth day of December one thousand nine hundred and twenty-four after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the “ Western Mail ” and the “ South Wales News ” being two newspapers published or circulating in the districts of the constituent authorities of the Board such notice being in addition to the ordinary notices required for summoning such meeting resolved that the costs and expenses

of and incidental to the promotion of the Bill for this Act be charged upon and paid out of the revenues of the Board: A.D. 1925.

And whereas at a further meeting of the Board held in pursuance of a similar notice on the twelfth day of January one thousand nine hundred and twenty-five being not less than fourteen days after the deposit of the Bill in Parliament the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Board and has received the approval of the Ministry of Health:

And whereas plans and sections showing the lines and levels of the works by this Act authorised and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Glamorgan and are hereinafter respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Pontypridd and Rhondda Water Act 1925 and this Act and the Pontypridd and Rhondda Water Acts 1910 to 1918 may be cited together as the Pontypridd and Rhondda Water Acts 1910 to 1925. Short title
and citation.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

- (1) The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say):—

The construction of the waterworks;

The construction of works for the accommodation of lands adjoining the waterworks;

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Mines;

The breaking up of streets for the purpose of laying pipes;

The provision for guarding against fouling the water of the undertakers;

The payment and recovery of the water rates;

The recovery of damages not specially provided for and of penalties and the determination of any other matter referred to justices or to the sheriff;

Access to the special Act;

and the provisions of the Waterworks Clauses Act 1863 with respect to the recovery of water rates and other money;

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845); and

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of land near the railway during the construction thereof and in such provisions for the purposes of this Act "the railway" and "the work" mean the works authorised by this Act and "the centre of the railway" means the centre of such works respectively.

Interpretation.

3. The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction. And the expressions "statutory security" "statutory borrowing power" and "the revenues of the Board" have the respective meanings assigned thereto by the Act of 1910.

Power to make works.

4.—(1) Subject to the provisions of this Act the Board may, wholly in the county of Glamorgan and in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following

works shown on the deposited plans and sections (that is to say):—

Work No. 1 A reservoir in the enclosure numbered 664 on the $\frac{1}{2500}$ Ordnance map Glamorgan sheet XXVIII—II edition 1919 (hereinafter referred to as “the map”);

Work No. 2 An aqueduct conduit or line or lines of pipes commencing by a junction with the intended aqueduct Work No. 9 authorised by the Taf Fechan Act of 1924 in the road numbered 645 on the map at a point therein distant 200 yards or thereabouts measured in a northerly direction from the north-western corner of the enclosure numbered 657 on the map and terminating in the reservoir Work No. 1 hereinbefore described;

Work No. 3 An aqueduct conduit or line or lines of pipes commencing in the reservoir Work No. 1 hereinbefore described and terminating at a point in Craig-yr-Helfa Road distant 330 yards or thereabouts measured in a north-westerly direction along the said road from Glyntaff Road;

Work No. 4 An aqueduct conduit or line or lines of pipes commencing by a junction with Work No. 3 hereinbefore described at a point therein situated 180 yards or thereabouts measured in a northerly direction from the north-western corner of the said enclosure numbered 657 and 125 yards or thereabouts measured in a north-easterly direction from the north-eastern corner of the enclosure numbered 653 on the map and terminating in the Glamorganshire Canal at a point therein distant 224 yards or thereabouts measured in a southerly direction along the bank of the canal from the bridge over the canal at the western end of Coronation Terrace;

Work No. 5 An aqueduct conduit or line or lines of pipes commencing at a point in Glyntaff Road opposite Craig-yr-Helfa Road and terminating at a point in Cardiff Road opposite the eastern end of the bridge over the river Taff known as Machine Bridge Treforest.

(2) In addition to the foregoing works the Board may upon the said lands make and maintain all such

A.D. 1925. buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any or either of them but nothing in this subsection shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Limits of deviation.

5. In the construction of the works by this Act authorised the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that except for the purpose of crossing over a stream or railway no part of the aqueducts conduits or lines of pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Power to acquire lands.

6. Subject to the provisions and for the purposes of this Act the Board may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

Board may acquire easements for access.

7. The Board may in lieu of acquiring the lands numbered 5 on the deposited plans acquire such easements only in such lands as they may require for the purpose of giving access to the works numbered 1 2 3 and 4 by this Act authorised and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts and the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use the said lands at all times as if this Act had not passed.

Incorporation of sections of Acts of 1910 and 1913.

8. The following sections of the Act of 1910 and the Act of 1913 are incorporated with this Act and shall extend and apply in regard to the works and lands authorised to be executed and taken under this Act as

if those sections with the necessary modifications were set forth in this Act namely :— A.D. 1925.

Of the Act of 1910—

Section 27 (Power to acquire easements only);

Section 31 (Provisions as to compensation):

Section 32 (Costs of arbitration &c. in certain cases);

Section 35 (Persons under disability may grant easements &c.);

Section 41 (Temporary discharge of water into streams);

Section 53 (For protection of Corporation of Cardiff):

Of the Act of 1913—

Section 17 (As to breaking up and reinstatement of roads in county of Glamorgan):

Provided that section 31 of the Act of 1910 in its application to this Act shall be read and have effect as if the nineteenth day of November one thousand nine hundred and twenty-four were therein mentioned instead of the first day of January one thousand nine hundred and ten :

Provided further that the powers of section 41 of the Act of 1910 shall not be exercised by the Board so as to damage or affect the railways or works of the Great Western Railway Company.

9. For the protection of the trustees of the will of the late Crawshay Bailey and their sequels in estate and other the owner or owners for the time being of the Crawshay Bailey Estate (in this section referred to as and included in the expression "the owners") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed between the Board and the owners apply and have effect (that is to say) :—

For protec-
tion of the
Crawshay
Bailey Es-
tate.

(1) The Board shall not purchase or acquire compulsorily the properties numbered 24 and 26 on the deposited plans or any part thereof or any interest therein save and except that the Board may acquire in accordance with and subject to the provisions of subsections (1) and (2) of

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section 27 of the Act of 1910 (as incorporated with this Act) an easement of constructing maintaining repairing and using in the said properties the aqueduct conduit or line or lines of pipes Work No. 3 by this Act authorised :

- (2) It shall be lawful for the owners and their lessees at all times to work all mines or minerals lying under or adjacent to the said Work No. 3 without being liable to leave any support therefor (whether lateral or vertical) and without being responsible for any damage that may happen to the said work by reason of such workings Provided that the mines and minerals be not worked in any unusual manner or contrary to the custom of mining in the district :
- (3) It shall be lawful for the owners and their lessees to lay out construct and use along over or under the said Work No. 3 such roads tram-roads aerial ways transporters inclines drains pipes and cables as may be reasonably necessary for facilitating the working of the said mines and minerals and the carrying out of all reasonable operations of the owners and their lessees in relation thereto without being liable to make any compensation to the Board Provided that no damage be done to the said Work No. 3 and reasonable access be preserved thereto Provided also that before constructing any work along over or under the said Work No. 3 or which may interfere with or affect the same or the access thereto one month's previous notice in writing accompanied by a sufficient plan and section of the proposed work shall be given by the owners or their lessees to the Board and within fourteen days after the service of any such notice plan and section upon the Board the Board may if they think fit serve a requisition upon the owners or their lessees requiring that any question in relation to the works or arising upon the notice plan and section shall be settled by arbitration and thereupon that question unless settled by agreement shall be determined by arbitration in the manner hereinafter provided :

(4) The Board shall make compensation to the owners and their lessees in respect of any injury damage cost or expense caused to or incurred by the owners and their lessees by reason of the construction alteration or repairing of the said Work No. 3 or works connected therewith or the bursting giving way or leakage thereof or the negligence or default of the Board or their servants : A.D. 1925.

(5) If any difference shall arise between the Board and the owners or their lessees under this section (other than a difference as to the compensation or purchase price for the easement to be acquired by the Board under subsection (1) hereof) the difference shall be referred to an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the reference.

10. For the protection of the Lewis Merthyr Consolidated Collieries Limited (in this section referred to as "the company") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed between the Board and the company apply and have effect (that is to say) :—

For protec-
tion of Lewis
Merthyr
Consoli-
dated Col-
lieries
Limited.

(1) Notwithstanding anything shown on the deposited plans or contained in the deposited book of reference it shall not be lawful for the Board to purchase or acquire any existing right or interest of the company in the subsoil of the lands numbered on the deposited plans 1 2 and 3 at a depth of more than twenty feet below the lowest point of the surface of those lands :

(2) It shall be lawful for the company at all times to work all mines or minerals lying under or adjacent to Works Nos. 1 2 and 3 by this Act authorised without being liable to leave any support therefor whether lateral or vertical and without being responsible for any damage that may happen to the said works or any of them by reason of such working Provided that

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the mines and minerals be not worked in any unusual manner or contrary to the custom of mining in the district :

- (3) The Board shall make compensation to the company in respect of any injury damage cost or expense caused to or incurred by the company or any of their workmen or persons employed by them by reason of the construction alteration or repairing of the said works or any of them or the bursting giving way or leakage thereof or the negligence or default of the Board or their servants :
- (4) If any difference shall arise between the Board and the company under this section such difference shall be determined by an arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the reference.

For protec-
tion of Taf
Fechan
Water
Supply
Board.

11. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions for the protection of the Taf Fechan Water Supply Board (in this section called "the Taf Fechan Board") shall unless otherwise agreed in writing between the Board and the Taf Fechan Board apply and have effect (that is to say) :—

- (1) If any work authorised by or constructed under the provisions of this Act (in this section called "work of the Board") is to be constructed above or below or within ten feet of any aqueduct conduit or other work belonging to the Taf Fechan Board (in this section called "work of the Taf Fechan Board") the same shall only be constructed and shall thereafter only be repaired altered or renewed in accordance with plans sections and specifications to be previously submitted by the Board to the engineer to the Taf Fechan Board and reasonably approved by him and the construction repair alteration or renewal of any such work of the Board shall not be commenced until the said plans sections and specifications have been approved by the

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said engineer or settled by arbitration as hereinafter provided and shall then be carried out under the superintendence (if given) and to the reasonable satisfaction in all respects of the said engineer. Provided always that if within twenty-one days from the delivery of the plans sections and specifications the said engineer shall not have expressed his disapproval thereof he shall be deemed to have approved the same :

(2) The Board shall not without the previous consent of the Taf Fechan Board under the hand of their clerk use any explosive substance in the construction of any work of the Board by this Act authorised situate within thirty feet of any work of the Taf Fechan Board but such consent shall not be unreasonably withheld :

(3)—(a) Where any work of the Board is to be constructed above or below any work of the Taf Fechan Board the same shall be so constructed and laid down by the Board as to leave a space of six inches at the least between the said works and shall be surrounded with concrete as hereinafter provided for a distance of four feet on each side of the work of the Taf Fechan Board measured at right angles to the centre line of that work ;

(b) In the event of the work of the Board being constructed above the work of the Taf Fechan Board such last-mentioned work shall be protected by the Board by means of 8 to 1 Portland cement concrete completely surrounding that work and having a minimum thickness of six inches and such concrete shall be carried vertically downwards to a point six inches below the work of the Taf Fechan Board and such protection shall have a width equal to the external diameter of the work of the Board and six inches in addition measured on each side thereof ;

(c) In the event of any work of the Board being constructed below any work of the Taf Fechan Board the last-named work shall be supported by the Board by means of 8 to 1

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Portland cement concrete founded on the undisturbed ground and carried up vertically on each side of and above the work of the Board to the level of the centre of the work of the Taf Fechan Board the minimum thickness of the concrete at that level being twelve inches measured on each side of the work of the Taf Fechan Board such concrete extending across the entire width of the trench opened up for the purpose of laying down the work of the Board :

- (4) Not less than seven days' notice in writing shall be given by the Board to the Taf Fechan Board before opening the ground within ten feet of any work of the Taf Fechan Board except in case of emergency when the longest notice possible shall be given :
- (5) The actual work of connecting any work of the Board with any work of the Taf Fechan Board at the Pontypridd point referred to in the section of this Act of which the marginal note is " Alteration of Pontypridd point for supply from Taf Fechan " shall if the Taf Fechan Board so desire and of such their desire give notice to the Board be carried out by the Taf Fechan Board but at the cost in all things of the Board :
- (6) The Board shall make full compensation to the Taf Fechan Board for all costs losses damages or expenses which they may sustain by or by reason or in consequence of the construction repair or renewal of any work authorised by this Act or any failure thereof :
- (7) The Taf Fechan Board shall at all times have full power to construct extend repair or alter any work of the Taf Fechan Board constructed under the authority of any Act passed before the passing of this Act above or below any work of the Board constructed under the authority of this Act and the Board shall indemnify the Taf Fechan Board from any increased expense reasonably incurred by them in constructing extending repairing or altering any work of the Taf Fechan Board under their

powers as existing at the passing of this Act which additional expense is due to the construction or existence of any work of the Board authorised by this Act : A.D. 1925.

- (8) If any difference shall arise under the provisions of this section between the Board and the Taf Fechan Board such difference shall be determined by a single arbitrator to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

12. The following provisions for the protection of the company of proprietors of the Glamorganshire Canal Navigation (in this section referred to as "the company") which expression shall include their successors and assigns shall notwithstanding anything in this Act contained and unless otherwise agreed between the company and the Board apply and have effect (that is to say) :—

For protection of company of proprietors of Glamorganshire Canal Navigation.

- (1) The construction of the aqueduct conduit or line or lines of pipes being Work No. 4 by this Act authorised (and hereinafter referred to as "the said Aqueduct No. 4") through the bank of and in the canal of the company at or near the properties numbered 12 13 and 14 on the deposited plans in the parish of Pontypridd and the construction of the aqueduct conduit or line or lines of pipes being Work No. 5 by this Act authorised (and hereinafter referred to as "the said Aqueduct No. 5") across the canal of the company at or near the properties numbered 31 32 and 33 on the deposited plans in the said parish shall be so carried out that the construction and maintenance of the said Aqueduct No. 4 shall not endanger the said canal and the said Aqueduct No. 5 shall be carried over the said canal at such a height as will not obstruct or interfere in any way with the traffic carried on the said canal :

- (2) All works by this Act authorised in or over the canal or on any property of the company

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including works of maintenance or repair (other than urgent repairs in case of accident) shall be carried out under the superintendence and to the reasonable satisfaction of the engineer of the company and according to plans sections and specifications to be submitted to and reasonably approved by him before any such works are commenced or in the event of any dispute or difference between such engineer and the engineer of the Board then in such manner as shall be settled by arbitration as hereinafter provided. Provided that if the engineer of the company shall fail to superintend at the time specified in a notice to be given by the Board to the company of their intention to commence the said works (such time being except in cases of emergency not less than fourteen days from the giving of the notice) such works may be executed without his superintendence and that unless the said engineer shall give notice of his disapproval of such plans sections or specifications within fourteen days after they shall have been submitted he shall be deemed to have approved thereof :

- (3) The said works shall be executed by and in all things at the expense of the Board and in such manner as not to cause either during or after the construction thereof any reasonably avoidable injury to the canal or other property of the company or interruption of traffic and if any injury or interruption shall arise or be occasioned either by accident or otherwise owing to any act or omission on the part of the Board the Board shall make compensation to the company in respect thereof :
- (4) The Board shall bear and on demand pay to the company the reasonable expenses of superintending the construction of the said aqueducts and any works of maintenance repair or renewal thereof :
- (5) The Board shall not under the powers of this Act purchase or take compulsorily or except as in this section provided interfere with any lands or property of the company but the Board may

purchase and take and the company shall at the request of the Board sell and grant any easement or right of using so much of the lands of the company as may be necessary for the construction maintenance and user of the said Aqueducts No. 4 and No. 5 respectively in and over the canal and the Board shall pay to the company in respect of any such easement or right such sum as shall in case of dispute be determined by arbitration under and in accordance with the provisions of the Lands Clauses Acts with respect to the settlement of cases of disputed compensation under those Acts : A.D. 1925.

- (6) If at any time hereafter the company require to make any improvement or alteration of their canal or to convert the canal into a road or railway at the places or either of the places where the said aqueducts or either of them shall pass into or over the same the Board shall at their own cost make such alterations of the said aqueducts or either of them as may be reasonably required by the company to enable them to carry out such improvement or alteration and the provisions of this section shall so far as applicable extend and apply to the execution and carrying out by the Board of any such alterations of the said aqueducts or either of them :
- (7) Any difference arising between the Board and the company or their respective engineers touching the matters referred to in this section or anything to be done or not to be done thereunder shall except where otherwise provided for be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of the Board or the company and the provisions of the Arbitration Act 1889 shall apply to any such reference.

13. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed

For protection of Great Western Railway Company.

A.D. 1925. between the Great Western Company and the Board
— apply and have effect (that is to say):—

- (1) In constructing laying down and executing and also (except in cases of emergency) in effecting the repairs or renewals of so much of Work No. 5 by this Act authorised including any works subsidiary thereto as may affect the railway or other property belonging to or used by the Great Western Company the same shall be done by and in all things at the expense of the Board except as in this section is otherwise provided and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Great Western Company and at such time or times as he shall reasonably approve and so as not to interfere with the structure of the railway and except in cases of repair according to plans sections and particulars to be submitted to and reasonably approved by the said engineer before any such works shall be executed. Provided that if the said engineer shall not signify his approval or disapproval of such plans sections and particulars within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof:
- (2) The Board shall restore and make good to the reasonable satisfaction of the said engineer the railway and other property of the Great Western Company and the portion of Glyntaff Road over the railway so far as the same may be disturbed or interfered with by or owing to any of the operations of the Board:
- (3) All such works shall be constructed executed and maintained so as not to cause any injury or damage to the railway or other property of the Great Western Company or any interruption to the passage or conduct of traffic over such railway and if any such injury damage or interruption shall arise from the acts or operations of the Board or by reason of the failure of the Board to maintain such works or the bursting leakage or failure of the works of the Board near to the railway or other property of the Great

A.D. 1925.

Western Company all such injury or damage shall as soon as reasonably practicable be made good by the Board at their own expense and to the reasonable satisfaction of the said engineer and the Board shall indemnify the Great Western Company from all claims in respect of any such injury damage or interruption and shall make compensation to the Great Western Company for and in respect thereof including compensation payable to any workmen or their legal representatives or dependents :

- (4) In the event of the Board failing to make good such injury or damage as aforesaid or failing to maintain all such works (where the same affect the railway or other property of the Great Western Company) in substantial repair and good order to the reasonable satisfaction in all respects of the said engineer or in case of emergency of which the said engineer shall be the sole judge the Great Western Company may make good the same and make and do in and upon as well the lands of the Board as their own lands all such repairs and things as may be reasonably requisite and recover the reasonable expense thereof (including compensation payable to any workmen or their legal representatives or dependents) from the Board :
- (5) If it should be necessary during the construction of any such works or by reason of the existence of the same to alter any of the telegraph telephone or signal posts or wires or other work or apparatus belonging to or on the railway of the Great Western Company the Great Western Company may effect such alterations and the Board shall repay to them the reasonable expenses incurred by them in so doing :
- (6) The Board shall not under the powers of this Act acquire compulsorily any lands of the Great Western Company save and except that the Board may acquire and the Great Western Company on being requested so to do by the Board shall sell to the Board such a right or easement as may be necessary to enable the Board to construct and maintain Work No. 5

A.D. 1925.

by this Act authorised over the railway and other property of the Great Western Company and the Board shall pay to the Great Western Company for any right or easement which they may so require the Great Western Company to sell such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement :

- (7) The Board shall bear and on demand pay to the Great Western Company the reasonable expenses (including compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the Great Western Company in and about such works) of the employment by them during the construction and repair of the said works of a sufficient number of inspectors signalmen or watchmen to be appointed by the Great Western Company for watching and protecting the said railways and the conduct of the traffic thereon with reference to and during the execution and repair of the said works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Board or their contractors or any person or persons in the employ of the Board or their contractors :
- (8) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railway or to extend alter or repair their railway or other property upon across over or under which any of the works of the Board by this Act authorised may have been constructed the Great Western Company may after giving to the Board fourteen days' notice in writing under the hand of their secretary or general manager or in case of emergency of which the said engineer shall be the sole judge after giving such notice as is possible divert support or carry the said works of the Board over their railway or other property at

any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that any works executed by the Great Western Company under this subsection shall be executed under the supervision (if given) and to the reasonable satisfaction of the engineer of the Board and that the Great Western Company shall not interrupt or interfere with the supply of water by the Board :

A.D. 1925.

(9) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering reconstructing repairing or maintaining their railway or other works by reason of the existence of the works of the Board laid or executed under the powers of this Act upon across over or under the same shall be paid by the Board :

(10) Except as in this section otherwise expressly provided any difference arising between the Board and the Great Western Company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed failing agreement at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

14. The powers of the Board for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

15. All private rights of way over any lands which the Board are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Board be extinguished Provided that the Board shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the

Extinction
of private
rights of
way.

A.D. 1925. Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for completion of works.

16. If the works by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of those works or so much thereof respectively as shall then be completed. Provided that subject to the restrictions and provisions of this Act the Board may at any time after the expiration of the said period lay down additional lines of pipes and alter enlarge extend and renew their mains pipes and other works as they may think expedient to provide for the requirements of their undertaking.

New works to form part of undertaking of Board.

17. The works constructed by the Board and the lands and easements acquired by them for the purposes of the works by this Act authorised shall so long as the same respectively are vested in the Board form part of the undertaking of the Board.

Increase of rates and prices.

18. As from the quarter-day which shall happen next after the passing of this Act section 61 (Rates for supply of water for domestic purposes) of the Act of 1910 as amended by section 26 (Rates for supply of water for domestic purposes) of the Act of 1913 and section 68 (Price of supply by measure) of the Act of 1910 as amended by subsection (3) of section 27 (Supply by measure) of the Act of 1913 and section 71 (Meter rents) of the Act of 1910 shall be modified so that the Board may make—

- (a) for water supplied for domestic purposes;
- (b) for water supplied by measure for other than domestic purposes; and
- (c) for the hire of meters and instruments for measuring water;

charges not more than seventy-five per centum in excess of the charges for those purposes by those sections authorised.

Revision of rates.

19.—(1) The Minister of Health may at any time if he thinks fit on the application of the Board or of a local authority having jurisdiction within the limits within which the Board are authorised to supply water or of

twenty consumers within those limits by order vary either by way of increase or decrease the rates for the supply of water which the Board are by this Act authorised to charge : A.D. 1925.
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Provided that the rates prescribed in any such order shall be of such amounts as to provide for the payments first to thirdly inclusive set forth in section 92 (Application of water revenue) of the Act of 1910 together with a reasonable sum as a contribution towards a reserve fund so long as such fund does not amount to the maximum prescribed by that section.

(2) The rates for the time being in force under any order made by the Minister of Health under subsection (1) of this section may in the like event be varied in like manner at any time after the expiration of any or every period of three years after they were last altered.

20. Part III. of the Third Schedule to the Taf Fechan Act of 1921 shall have effect as if—

Amendment
of Taf
Fechan Act
of 1921
Third
Schedule
Part III.

(1) Paragraph 1 of the said Part III. were amended as mentioned in the First Schedule to this Act :

(2) Paragraphs 3 4 6 and 7 of the said Part III. were omitted and the paragraphs numbered 3 4 6 and 7 in the First Schedule to this Act were substituted therefor ; and

(3) Paragraph 12 of the said Part III. were amended as mentioned in the First Schedule to this Act.

21. Such of the provisions of Part III. of the Third Schedule to the Taf Fechan Act of 1921 as amended by this Act as relate to the delivery of water by the Board to the Llantrisant Council and by the Taf Fechan Board to the Board on Llantrisant Council account and the measuring of the waters so delivered and the payments to be made by the Llantrisant Council to the Board for water delivered to them by the Board in pursuance of those provisions are binding upon the Board and the Llantrisant Council respectively and the Board and the Llantrisant Council may take proceedings against one another to enforce the performance or observance of any act or condition required by that Part of that schedule as so amended to be performed or observed by the other of them and for any failure or neglect in respect of any such performance or observance.

As to supply
to Llantri-
sant Council
under Act of
1921.

A.D. 1925.
—
Amendment
of section 59
of Act of
1910.

22.—(1) Section 59 (For protection of Llantrisant and Llantwit Fardre Rural District Council) of the Act of 1910 shall have effect as if subsection (7) thereof were omitted therefrom and the following subsection were substituted for that subsection (that is to say) :—

“(7) If and when either of them the Llantrisant Council and the Board intend to construct a main for conveying water from the upper point to Pen-Coed-Cae the one of them who has such intention (hereinafter referred to as “the owners”) shall before proceeding to construct such main give two months’ notice thereof in writing to the other of them (hereinafter referred to as “the users”) and if within one month of receipt of such notice the users signify in writing to the owners that the users require the owners to convey by such main a quantity of water to be specified and provided by the users then the owners shall construct the main of a size sufficient to meet the requirements of themselves and of the users and a fair proportion of the expenses incurred in and incidental to the construction and maintenance of such main shall be repaid to the owners by the users. All water conveyed for the users through such main shall be measured at the points at which such water is put into and taken out of the said mains by meters or other apparatus to be fixed in suitable chambers by the owners at the expense of the users and the users shall at all reasonable times be at liberty to inspect such meters and apparatus and to test the accuracy thereof. The owners shall not be liable for any damage which may be caused to the users or to any consumer of the users by any temporary failure deficiency or defect in the delivery of the water intended to be conveyed under this subsection if such failure deficiency or defect shall be occasioned by frost or unavoidable cause or accident. If any difference shall arise under this subsection the same shall be determined in default of agreement by arbitration in accordance with the provisions of subsection (11) of this section.”

(2) Subsections (8) and (10) of section 59 of the Act of 1910 shall as from the date when the Llantrisant Council first receive a supply of water from the Taf Fechan Board be by virtue of this Act repealed. A.D. 1925.
—

23. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Board in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Board. Mainten-
ance of
common
pipe.

24.—(1) If in the opinion of the Board any waste of water or injury or risk of injury to person or property is caused by or likely to be caused by reason of any injury to or defect in any communication pipe which the Board are not under obligation to maintain it shall be lawful for the Board subject as hereinafter provided to enter the premises on which such communication pipe is situate and execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do. Power to
Board to
repair com-
munication
pipes.

(2) If any injury to or defect in the communication pipe shall have been found the expenses incurred by the Board for the purpose of ascertaining the cause of injury or defect and executing the repairs (including the expenses of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Board from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable.

(3) Except in case of emergency the Board shall not under the powers of this section enter into any private premises unless they shall have given to the owner and occupier of such premises not less than twenty-four hours' previous notice of their intention so to enter.

25. Notwithstanding anything contained in any Act relating to the Board the Board shall have the exclusive right of executing any works on any of the water mains of the Board for connecting any communication Board to
connect
communi-
cation pipes
with mains.

A.D. 1925. or service pipes therewith and the Board shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Board execute on any such main subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes any work and supply all fittings and materials which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Board in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Detection of waste.

26.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Board may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Board and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas and water pipes electric lines wires and apparatus.

(2) Provided always that the Board shall not interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

(3) Provided further that the Board shall not stop break up or interfere with any street road lane or other property of the Great Western Railway Company without first obtaining the consent in writing of that company.

Register of meter to be *primâ facie* evidence.

27. Where the Board supply water by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Board Provided that if the Board and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and

the decision of such court shall be final and binding on all parties. A.D. 1925.

28. The Board may require that any dwelling-house erected at the passing of this Act and not fitted on the seventeenth day of December one thousand nine hundred and twenty-four with a water pipe above the ground floor and any new dwelling-house erected after the passing of this Act and (in each case) situate on land at a higher level than fifty feet below the service reservoir from which a supply of water is furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply for such dwelling-house for a period of forty-eight hours and the Board shall not be required to supply any such existing dwelling-house at a greater pressure than is sufficient to reach the ground floor or any such new dwelling-house until the same is provided with a cistern in conformity with the requirements of this section.

Cisterns to be provided for high level supplies.

29. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Board be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-sixth part of such expense and as if the period of three years mentioned in that section were five years.

Amendment of section 35 of Waterworks Clauses Act 1847.

30. Every person who shall wilfully (without the consent of the Board) or negligently close or shut off any valve cock or other work or apparatus belonging to the Board whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Board) be liable to a penalty not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for closing valves &c.

31. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Board who shall without the authority of the Board turn on any valve cock or other work or apparatus attached to any service main or pipe connected

Penalty for opening valves &c.

A.D. 1925. with any main of the Board and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Power to borrow.

32.—(1) The Board may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column thereof (namely):—

Purpose.	Amount.	Period.
(a) For the purchase of lands and easements for and the construction of the reservoir Work No. 1 by this Act authorised.	£ 30,300	Fifty years from the date or dates of borrowing.
(b) For the construction of the other works by this Act authorised.	13,500	Forty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Board may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act including working capital and any money borrowed under this subsection shall be repaid within such period (in this Act referred to as “the prescribed period”) as may be prescribed by the Minister of Health.

(3) In order to secure the repayment of the money borrowed or re-borrowed under this Act and the payment of interest thereon the Board may mortgage or charge the revenues of the Board.

Amendment of section 81 of Act of 1910.

33. Section 81 (Sinking fund) of the Act of 1910 shall be read and have effect as if in lieu of the words “three pounds per centum per annum” the words “three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to

“time approve” had been inserted in paragraph (1) of that section. A.D. 1925.

34. The following provisions of the Act of 1910 as amended by this Act shall subject to the provisions of this Act and with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act namely:—

Application
of financial
provisions of
Act of 1910.

- Section 78 (Mode of raising money);
- Section 79 (Provisions of Public Health Act 1875 as to mortgages to apply);
- Section 80 (Mode of payment off of money borrowed) except subsection (2) thereof;
- Section 81 (Sinking fund);
- Section 82 (Protection of lender from necessity of inquiry);
- Section 83 (Board not to regard trusts);
- Section 84 (Appointment of receiver);
- Section 85 (Power to re-borrow);
- Section 87 (Proceeds of sale of surplus lands);
- Section 90 (Application of money borrowed);
- Section 94 (Expenses of execution of Act):

Provided that section 79 shall be read and have effect as if the same had been expressed to be made subject to the provisions of the section of this Act of which the marginal note is “Power to use one form of mortgage.”

35.—(1) Where the Board have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to use
one form of
mortgage.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Board and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing

A.D. 1925. power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Board at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Board.

(5) Nothing in this section contained shall alter or affect the obligations of the Board to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods and by the means within and by which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Board to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the clerk to the Board a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a fine not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Board shall not be in any manner responsible to the transferee. A.D. 1925.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a fine not exceeding twenty pounds.

36.—(1) Notwithstanding anything contained in any other Act the Board may if they think fit as from the thirty-first day of March one thousand nine hundred and twenty-six or as from any succeeding thirty-first day of March establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received :—

(a) All moneys borrowed by the Board either on the issue of stock or the creation of mortgages or other security or without security in connection with the exercise of any statutory borrowing power ;

(b) All moneys of a capital nature received by the Board whether from the sale of capital assets or otherwise except such as are applied by the Board with due authority to another capital purpose ;

A.D. 1925.
—

(c) The appropriate sums provided in each year out of other funds of the Board to comply with the terms and conditions as to repayment attaching to their several borrowing powers; and

(d) A sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock mortgages or other securities issued in exercise of the statutory borrowing powers of the Board and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Board as aforesaid before the thirty-first day of March as from which date the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund shall subject as hereinafter provided be used or applied by the Board:—

(a) In the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Board; or

(b) In the redemption of stock mortgages or any other securities issued or created by the Board the purchase of stock for extinction or the repayment of any moneys borrowed by the Board; or

(c) In the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of the statutory borrowing powers of the Board and remaining outstanding; or

(d) For such other purposes as the Minister of Health may from time to time approve:

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Board and the dividends and interest thereon shall be charged indifferently on all the revenues of the Board and shall rank equally one with the other without any priority whatsoever. A.D. 1925.

(4) Save as in this section expressly provided all the obligations of the Board to the holders of stock or other securities of the Board shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Board except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

37. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Board are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Board (that is to say):—

Investment of and payments into sinking fund.

(1) The Board may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities:

(2) The appropriate yearly sums and the accumulations (if any) of the said yearly sums shall be paid and provided out of the revenues of the Board and any interest dividends and annual proceeds arising from the investment of the said yearly sums and the accumulations thereof (including such yearly sums and accumulations thereof as may have been provided prior to the passing of this Act) shall be paid into the revenues of the Board.

38.—(1) The Board may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any

Scheme for fixing equated periods.

A.D. 1925. loans contracted by them under statutory borrowing power shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act in regard to the borrowing and repayment of money with or without modification and may make provision in regard to all matters incidental to the objects aforesaid.

(2) No scheme made by the Board under this section shall have any force or effect until confirmed by the Minister of Health who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister of Health may be consolidated and dealt with in the accounts of the Board as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister of Health separate consolidations may be made of all or any of the loans included under such general headings.

(5) The Board may with the sanction of the Minister of Health and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Board for their consent thereto and any moneys so borrowed shall be repaid within such period as the Minister of Health may sanction.

(6) Any scheme confirmed under this Act may be altered extended amended or annulled by any other

scheme prepared and confirmed in like manner as the original scheme. A.D. 1925.

39.—(1) The clerk to the Board shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Board under any statutory borrowing power. Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Board and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Board shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The following enactments are hereby repealed. (namely) :—

(a) Section 89 (Return to Local Government Board as to repayment of debt) of the Act of 1910;

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(b) So much of section 29 (Application of provisions of Act of 1910) of the Act of 1913 as extends and applies to section 89 of the Act of 1910 aforesaid to or for the purposes of the Act of 1913;

(c) Any provision (other than the foregoing provisions of this section) of any enactment requiring the Board or any officer of the Board to make an annual return to the Minister with regard to the repayment of debt.

Evidence of transfer or transmission of securities.

40. It shall not be obligatory on the Board to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the clerk to the Board of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Interest on mortgages held jointly.

41. Where more persons than one are registered as joint holders of any mortgage or stock of the Board any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Board or to the clerk to the Board by any other of them.

Receipt in case of persons not sui juris.

42. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Board.

Power to Board to lend money temporarily to constituent authorities.

43. The Board may from time to time lend for any period not exceeding twelve months to any constituent authority any sum of money which is not for the time being required for the purpose for which it was raised and the same shall be lent on such terms and conditions and in such forms as may be agreed between the constituent authority and the Board.

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44. Section 57 (Notice to be given of contracts to the amount of £100 or upwards) of the Commissioners Clauses Act 1847 shall cease to apply to the Board and to be incorporated with the Act of 1910.

Exclusion of
section 57 of
Commis-
sioners
Clauses Act
1847.

45. The following provisions of the Act of 1910 as amended by this Act shall subject to the provisions of this Act and with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Application
of miscel-
laneous pro-
visions of
Act of 1910.

Section 99 (Inquiries by Local Government Board);

Section 102 (As to notices &c.);

Section 103 (Judges not disqualified);

Section 104 (Recovery of penalties);

Section 105 (Application of penalties);

Section 107 (Recovery of demands):

Provided that for the purposes of this Act subsection (2) of the said section 99 shall be read and have effect as if in lieu of the words "three guineas" the words "five guineas" had been inserted therein.

46. All costs charges and expenses of and incident to the preparing for and obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board out of the revenues of the Board or out of money to be borrowed under this Act for that purpose.

Costs of Act.

A.D. 1925. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

(Referred to in section 20 of this Act.)

Amendments to Part III. of the Third Schedule to the Taf Fechan Water Supply Act 1921.

Paragraph 1 to be amended as follows:—

omit “at such a point on the main of the Board in the
“constituent area of the Pontypridd Board that the
“route therefrom to the Lan Wood reservoir of the
“Pontypridd Board shall be the shortest available
“route between any point on that main and that
“reservoir” and insert “the point of commencement
“of Work No. 2 authorised by the Pontypridd and
“Rhondda Joint Water Board Act 1925.”

The following paragraphs to be substituted for the paragraphs so numbered therein:—

(3) (a) During each year after the date on which the Taf Fechan Reservoir is completed and filled with water the Pontypridd Board shall supply to the Llantrisant Council and the Llantrisant Council shall take from the Pontypridd Board or pay for as if taken the minimum quantity of water per day of twenty-four hours hereinafter stated (namely):—

During the first such year -	112,500 gallons.
During the second such year -	115,000 gallons.
During the third such year -	117,500 gallons.
During the fourth such year -	120,000 gallons.
During the fifth such year -	122,500 gallons.
During the sixth and each subsequent such year -	125,000 gallons

(b) The Pontypridd Board shall also deliver to the Llantrisant Council in addition to the minimum quantity such further supply of water per day of twenty-four hours as the Llantrisant Council may from time to time require as with the minimum quantity makes a maximum quantity of 700,000 gallons per day which the Pontypridd Board may be required to supply to the Llantrisant Council from and after the date upon which the Taf Fechan reservoir is completed and filled with water;

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(c) The Llantrisant Council shall by a Notice A in writing inform the Pontypridd Board of the quantity of water which they from time to time require to be delivered to them under this paragraph but the quantity of water specified in every Notice A shall not be less than the minimum quantity per day which the Llantrisant Council are then under obligation to take and until a Notice A shall have been so given the Llantrisant Council shall be deemed to have given such a notice in respect of the said minimum quantity. Every Notice A given or deemed to have been given in pursuance of this section shall remain in force until the date on which the Pontypridd Board are required by the next Notice A to deliver a different quantity of water to the Llantrisant Council;

(d) All water supplied by the Pontypridd Board to the Llantrisant Council under this paragraph shall be delivered at the point (hereinafter referred to as "the upper point") opposite the Trebanog Inn on the boundary of the constituent area of the Llantrisant Council at which they now receive water from the Pontypridd Board;

- (4) (a) The Pontypridd Board may from time to time require the Llantrisant Council by a Notice B in writing to cause to be delivered to them on Llantrisant Council account at the Pontypridd point out of the water to be supplied by the Board to the Llantrisant Council under this Act such daily quantity of water (if any) as they from time to time require to be delivered to them under this paragraph but the quantity of water specified in every Notice B shall not exceed the quantity of water specified in the Notice A for the time being in force;

(b) The Llantrisant Council shall forthwith after receiving any Notice B by a Notice C in writing inform the Board of the quantity of water specified in that Notice B.

6. The Board shall deliver to the Pontypridd Board on Llantrisant Council account at the Pontypridd point and at the pressure prescribed by paragraph 1 of this Part of this schedule the quantity of water specified in the Notice C (if any) for the time being in force.

7. Subject to the provisions of paragraph 6 hereof the Board shall deliver the water which the Llantrisant Council are entitled to and require to be delivered under the provisions of this Act to that Council at the point at Nant-y-Dall on the boundary of the constituent area of the Llantrisant Council at which they now receive water from the Pontypridd Board or at such other

A.D. 1925. point or points as may be mutually agreed between the Llantrisant Council and the Board (hereinafter referred to as "the lower point") and at a pressure sufficient to raise the water to an elevation of seven hundred feet above Ordnance datum at the least.

Paragraph 12 to be amended as follows:—

After "one shilling per thousand gallons" insert "or such other price as may from time to time be agreed between the Pontypridd Board and the Llantrisant Council."

After "altered" insert "and that the Pontypridd Board and the Llantrisant Council have been unable to agree on a new price to be substituted for the price in this paragraph mentioned."

THE SECOND SCHEDULE.

(Referred to in section 35.)

FORM OF MORTGAGE.

PONTYPRIDD AND RHONDDA JOINT WATER BOARD.

By virtue of the Pontypridd and Rhondda Water Act 1925 and of other their powers in that behalf them enabling the Pontypridd and Rhondda Joint Water Board (hereinafter referred to as "the Board") in consideration of the sum of

pounds (hereinafter referred to as "the principal sum") paid to the clerk of the Board by

of (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Board as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until the payment of the principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the principal sum shall be repaid at the offices of the Board [(subject as hereinafter provided) on the day of one thousand nine hundred and by]:

Provided always and it is hereby agreed and declared that the before mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Board and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the chairman and the clerk of the board for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

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—

In witness whereof the Board have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

Chairman.

Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be at the rate of per centum per annum.

Dated this day of one thousand nine hundred and .

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]]
[of]
in consideration of the sum of pounds
paid to me by of]
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number of the
revenues of the Pontypridd and Rhondda Joint Water Board
bearing date the day of] and all my

A.D. 1925. right and interest under the same subject to the several conditions
— on which I hold the same at the time of the execution hereof and
I the transferee for myself my executors administrators and
assigns do hereby agree to take the said mortgage security subject
to the same conditions.

Dated this day of one thousand
nine hundred and

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